

Dinesh Kumar Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 April 2022 · WRIT - C No. 11806 of 2022 · **Final assessment of 10.01.2022 quashed; fresh order after Clause 8.1(b)(iii) compliance.**

HEADNOTE

The Division Bench quashed a 10 January 2022 final theft assessment because the provisional assessment, received on 5 January 2022, had not allowed the fifteen days Clause 8.1(b)(iii) of the Electricity Supply Code, 2005 requires to reply, and no personal-hearing date had been intimated. On the Corporation's concession, the assessing officer was left free to pass a fresh order in accordance with those provisions.

FACTUAL SUMMARY

Dinesh Kumar Yadav challenged respondent no. 2's order dated 10 January 2022, which had finalized a provisional assessment of 23 November 2021 under the Electricity Act, 2003. Counsel submitted that the provisional assessment was dispatched on 20 December 2021 and received only on 5 January 2022, so the petitioner was not given the fifteen days Clause 8.1(b)(iii) of the Electricity Supply Code, 2005 requires to file a reply, nor a date for personal hearing, before the final assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)(iii)

theft-assessment-notice-and-hearing

HOLDING

A final assessment cannot stand where the provisional assessment/show-cause was served so late that the consumer did not get at least fifteen days under Clause 8.1(b)(iii) of the Electricity Supply Code, 2005 to file a reply, and no date for personal hearing was intimated. The final order is liable to be quashed, with liberty to the assessing officer to pass a fresh order after complying with those requirements. ¶ 1

PRINCIPLE TAGS

clause-8.1b-theft-notice-natural-justice Provisional assessment dispatched 20.12.2021 and received 05.01.2022 did not give fifteen days to reply before the 10.01.2022 final order; that order was quashed. ¶ 1

clause-8.1b-personal-hearing-mandatory-before-final-assessment No date for personal hearing was intimated before the final theft assessment; the Corporation conceded a fresh order after that statutory step, and the Court quashed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE THEFT ASSESSMENT

The 10.01.2022 final order was quashed only for Clause 8.1(b)(iii) notice and hearing defects; respondent no. 2 was left free to pass a fresh order in accordance with law. ¶ 1